



CHAPTER lvi

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the Bank of Scotland. [25th November 1954.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the Bank of Scotland Order Confirmation Act 1954. Short title.

SCHEDULE

BANK OF SCOTLAND

Provisional Order to provide for the transfer to the Governor and Company of the Bank of Scotland of the business and undertaking of The Union Bank of Scotland Limited to authorise the Governor and Company of the Bank of Scotland to increase their capital and for other purposes.

WHEREAS by an Act of the Parliament of Scotland passed in the fifth year of the reign of His Majesty King William the Third dated the seventeenth day of July one thousand six hundred and ninety-five intituled "Act for Erecting a Publick Bank" the Governor and Company of the Bank of Scotland (hereinafter called "the Company") was incorporated "for the carrying on and managing of a publick bank":

And whereas powers of increasing their capital stock were conferred on the Company and further provisions for the management and administration of its affairs were made by the following Acts of Parliament (that is to say) 14 George 3 chapter 32 24 George 3 session 2 chapter viii 32 George 3 chapter 25 34 George 3 chapter 19 44 George 3 chapter xxiii the Bank of Scotland Act 1873 and the Bank of Scotland Act 1920 and the business and affairs of the Company are regulated managed administered and carried on under and by virtue of the Acts hereinbefore mentioned (all of which Acts are hereinafter called "the Bank of Scotland Acts 1695 to 1920"):

And whereas The Union Bank of Scotland Limited (hereinafter called "the Union Bank") whose head office is in Glasgow was originally formed in the year one thousand eight hundred and thirty under the name of the "Glasgow Union Banking Company" such name being changed in the year one thousand eight hundred and forty-three to "The Union Bank of Scotland" and was registered as a limited liability company under its present name in the year one thousand eight hundred and eighty-two and carries on an extensive banking business:

And whereas the capital of the Union Bank comprises 1,000,000 "A shares" of £5 each (of which £1 has been paid) and 200,000 "B shares" of £1 each (fully paid):

And whereas with a view to the ultimate fusion of the Company and the Union Bank an offer was made by the Company on the ninth day of September one thousand nine hundred and fifty-two for the acquisition of the whole issued capital of the Union Bank in accordance with the terms and conditions whereof the shareholders of the Union Bank were offered stock of the Company in exchange for their shares in the Union Bank in the proportion of £7 of stock of the Company to be created and issued for the purpose for each four shares of either class of the Union Bank together with a cash payment to the holders of "B shares" of the Union Bank at the rate of two shillings and sixpence for each such "B share":

And whereas the said offer was accepted by the holders of over 90 per cent. of each class of shares of the Union Bank and on the twenty-third day of October one thousand nine hundred and fifty-two the said offer became effective and binding:

And whereas the remainder of the shares of the Union Bank of both classes have subsequently been acquired by the Company and accordingly the Company now owns the entire share capital of the Union Bank:

And whereas the issued capital of the Company before the said offer was made was £2,400,000 fully paid stock and in order to implement the said offer £2,100,000 additional stock was created and issued (being the remainder of the capital authorised by the Bank of Scotland Acts 1695 to 1920) and accordingly the issued capital of the Company now comprises £4,500,000 stock all fully paid up:

And whereas in order to provide for the fusion of the Company and the Union Bank it is expedient that the undertaking of the Union Bank should be transferred to the Company as provided in this Order and that the other provisions contained in this Order relative thereto should be enacted:

And whereas it is expedient that the Company should be empowered to increase its capital should it be found advisable so to do at any time for the purposes of the business of the Company:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1. This Order may be cited as the Bank of Scotland Order 1954 and this Order and the Bank of Scotland Acts 1695 to 1920 may be cited together as the Bank of Scotland Acts 1695 to 1954. Short and collective titles.

2. This Order shall commence and have effect as on and from the first day of March one thousand nine hundred and fifty-five (which date is hereinafter in this Order referred to as “the appointed day”). Commencement of Order.

3. In this Order unless there is something in the subject or context repugnant to such construction words and expressions to which meanings are assigned by the Bank of Scotland Act 1920 shall have the same respective meanings; and Interpretation.

“undertaking of the Union Bank” means and includes the business and property of the Union Bank including all lands buildings property investments and assets heritable and movable real and personal and all other rights whether statutory or otherwise of whatever nature and wherever situated belonging to and vested in the Union Bank immediately before the appointed day subject to all charges or liabilities affecting the same;

“the Union Bank” means The Union Bank of Scotland Limited.

Transfer of
undertaking of
Union Bank to
Company.

4.—(1) On the appointed day the undertaking of the Union Bank shall by virtue of this Order and without further act or deed be transferred to and vested in the Company.

(2) To enable the Company to complete a title if thought fit to any property transferred to and vested in them by virtue of this Order by notice of title or otherwise this Order shall be deemed to be and may be used as a general disposition conveyance or assignation as the case may be of such property in favour of the Company.

(3) In lieu of the stamp duties if any which would have been payable upon the deeds or instruments which would apart from this Order have been required to pass the property transferred to and vested in the Company by virtue of this Order and the stamp duties if any which would have been payable in respect of the vesting of such property in the Company by virtue of this Order there shall be paid a stamp duty of five pounds and such duty shall be impressed upon a copy of the Act confirming this Order and the Company shall produce such stamped copy to the Commissioners of Inland Revenue within three months after the passing of the Act confirming this Order.

Transfer of
liabilities.

5. On the appointed day all debts claims engagements liabilities and obligations whether statutory or otherwise of the Union Bank shall by virtue of this Order and without further act or deed be transferred to the Company and shall thereafter be discharged and satisfied by the Company.

Contracts to be
binding on or
enforceable by
Company.

6. All agreements awards contracts conveyances deeds and other instruments or undertakings entered into by or made with or addressed to the Union Bank before and in force on the appointed day shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the Union Bank the Company had been a party thereto or the grantor or grantee thereof.

Actions not
to abate.

7. If on the appointed day any claim (including any contingent claim) action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the Union Bank the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer of the undertaking of the Union Bank to the Company by virtue of this Order but the same may be continued prosecuted and enforced by or against or in favour of the Company as and when it might have been continued prosecuted and enforced by against or in favour of the Union Bank if the Act confirming this Order had not been passed.

Evidence and
books and
documents.

8. All books and documents which if the undertaking of the Union Bank had not been transferred to the Company by virtue of this Order would have been evidence in respect of any matter for or against the Union Bank shall be admitted in evidence in respect of the same or the like matter for or against the Company.

Application of
Bankers' Books
Evidence Act
1879 to books of
Union Bank and
entries therein.

9.—(1) Notwithstanding the transfer of the undertaking of the Union Bank to the Company under and in terms of this Order the provisions of the Bankers' Books Evidence Act 1879 shall continue to apply with respect to the books of the Union Bank transferred to the Company by virtue of this Order and to entries made in such books before the appointed day.

(2) For the purposes of this section "books" include ledgers day books cash books account books and all other books used in the ordinary business of the Union Bank before the appointed day.

10. The production of a Queen's Printers' or Royal Assent copy of the Act confirming this Order shall be conclusive evidence in all courts and proceedings of the transfer of the undertaking of the Union Bank to the Company and of the vesting of the undertaking of the Union Bank in the Company. Evidence of transfer.

11. The Union Bank shall by virtue of this Order be dissolved on the appointed day and the Company shall deliver to the Registrar of Companies as soon as practicable thereafter a notice of such dissolution and shall pay to the registrar the prescribed fee for registration of such dissolution. Dissolution of Union Bank.

12. For the purposes of section 4 of the Bank Notes (Scotland) Act 1845 this Order shall be deemed to be a written contract or agreement uniting the Union Bank with the Company. Application of section 4 of Bank Notes (Scotland) Act 1845.

13. Where by any trust deed settlement covenant or agreement or by any trust disposition and settlement will codicil or other testamentary writing whether made or executed before or after the passing of the Act confirming this Order the Union Bank were appointed trustees executors guardians custodians or in any other fiduciary capacity such trust deed settlement covenant or agreement trust disposition and settlement will codicil or other testamentary writing shall not fail by reason of anything in this Order but shall as from the appointed day be read and construed and have effect as if for any reference therein to the Union Bank there was substituted a reference to the Company. As to trust deeds etc. appointing Union Bank as trustees etc.

14. Notwithstanding anything in this Order the fund known as "The Officers' Superannuation and Provident Fund of The Union Bank of Scotland Limited" as constituted by Constitution and Regulations adopted on the nineteenth day of October one thousand nine hundred and thirty-eight and altered on the eleventh day of December one thousand nine hundred and forty-five and the "General provisions as to Pensions which may be granted by the Bank" and "Provisions with regard to Supplementary Benefits available to Members of the said Officers' Superannuation and Provident Fund" all of which were in operation immediately before the appointed day and of which copies were (together with certified excerpts from minutes of relative meetings prefixed) registered for preservation in the Books of the Lords of Council and Session on the fourth day of June one thousand nine hundred and fifty-four and are hereinafter in this section referred to as "the pension scheme" shall subject to the substitution in the pension scheme of references to the Company for the references therein to the Union Bank (therein called "the Bank") and subject to any other necessary modifications continue to have effect (in lieu of the staff pension fund or funds of the Company) in regard to all persons being male members of the staff of the Union Bank who immediately before the appointed day Continuation of Officers' Superannuation and Provident Fund of Union Bank in respect of existing officers.

were members or were (in accordance with paragraph 2 of the said Constitution and Regulations) entitled or required to become members of the pension scheme and to their dependants or executors or persons appointed by any mortis causa deed or writing to receive and retain any sum falling to be paid under the pension scheme to the executors of any such person being a member of the pension scheme and shall apply to the Company in respect of such persons being members of the pension scheme and their dependants executors or persons appointed as aforesaid to receive and retain any such sums.

Increase
of capital.

15.—(1) The proprietors may from time to time increase the capital of the Company by the creation of new stock of such amount as the proprietors may resolve at any general meeting specially called for that purpose.

(2) (a) Stock so created shall while unissued remain under the control of the proprietors who may issue or allot the same at such prices and times in such manner and generally for such purposes and upon such terms and conditions as the proprietors shall resolve.

(b) Stock so issued or allotted shall be under the management care and direction of the Company from the time of issue or allotment in like way and manner as the stock already issued under the authority of the Bank of Scotland Acts 1695 to 1920.

(3) Stock created under the powers of this section and the proprietors thereof shall subject to the terms of the resolution creating or authorising the issue of such stock have the same privileges liberties and immunities as the existing stock of the Company and the proprietors thereof have and shall be subject in all respects to the restrictions and provisions to which the existing stock and the proprietors thereof are subject.

(4) The period within which the Company shall deliver to the Commissioners of Inland Revenue the statement of the amount of any increase of nominal capital required by section 113 of the Stamp Act 1891 shall be one month after the date of any resolution whereby the capital of the Company is increased.

Saving for
general Acts
relating
to banks.

16. Nothing in this Order shall exempt the Company from the provisions of any general Act relating to banks passed before or after the date of the passing of the Act confirming this Order.

Costs of Order.

17. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company.

Table of Statutes referred to in this Act

Short title	Session and chapter
Act for Erecting a Publick Bank	5 Will. 3 Parl. I sess. V.
An Act to enable the Governor and Company of the Bank of Scotland to increase the Capital Stock of the said Company	14 Geo. 3 c. 32.
An Act to enable the Governor and Company of the Bank of Scotland further to increase the Capital Stock of the said Company	24 Geo. 3 sess. 2 c. viii.
An Act to enable the Governor and Company of the Bank of Scotland further to increase the Capital Stock of the said Company	32 Geo. 3 c. 25.
An Act to enable the Governor and Company of the Bank of Scotland further to increase the Capital Stock of the said Company	34 Geo. 3 c. 19.
An Act for further increasing the Capital Stock of the Governor and Company of the Bank of Scotland	44 Geo. 3 c. xxiii.
Bank Notes (Scotland) Act 1845	8 & 9 Vict. c. 38.
Bank of Scotland Act 1873	36 & 37 Vict. c. xcix.
Bankers' Books Evidence Act 1879	42 & 43 Vict. c. 11.
Stamp Act 1891	54 & 55 Vict. c. 39.
Bank of Scotland Act 1920	10 & 11 Geo. 5 c. xxxi.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8 c. 52.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

Ch. lvi

Bank of Scotland
Order Confirmation Act, 1954

2 & 3 ELIZ. 2

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 9d. net

PRINTED IN GREAT BRITAIN

(37787)

Bank of Scotland Order Confirmation Act, 1954

2 & 3 ELIZ. 2 Ch. lvi

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in Schedule.
2. Short title.

SCHEDULE

BANK OF SCOTLAND

1. Short and collective titles.
2. Commencement of Order.
3. Interpretation.
4. Transfer of undertaking of Union Bank to Company.
5. Transfer of liabilities.
6. Contracts to be binding on or enforceable by Company.
7. Actions not to abate.
8. Evidence and books and documents.
9. Application of Bankers' Books Evidence Act 1879 to books of Union Bank and entries therein.
10. Evidence of transfer.
11. Dissolution of Union Bank.
12. Application of section 4 of Bank Notes (Scotland) Act 1845.
13. As to trust deeds etc. appointing Union Bank as trustees etc.
14. Continuation of Officers' Superannuation and Provident Fund of Union Bank in respect of existing officers.
15. Increase of capital.
16. Saving for general Acts relating to banks.
17. Costs of Order.